



Terms & Conditions

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These Terms & Conditions ("Terms") govern your use of the DesignLynk website (designlynk.co.za) and web application (app.designlynk.co.za) (together, the "Service"), operated by **[DesignLynk (Pty) Ltd]** ("DesignLynk", "we", "us"). By creating an account or using the Service, you agree to these Terms. If you do not agree, do not use the Service.

Fill in before publishing: operating entity **[DesignLynk (Pty) Ltd]**, registration number **[_____]**, address **[_____]**.

1. Who can use DesignLynk

You must be at least **18 years old** and able to enter into a binding contract. You agree to provide accurate information and to keep your account details up to date.

2. What DesignLynk is (and is not)

DesignLynk is an **online marketplace** that helps **clients** (people and organisations who need CAD, engineering, and design work) find and engage **designers** (freelance CAD professionals, engineers, and architects).

DesignLynk is an intermediary platform only. When a client and a designer agree to work together, they enter into a contract **directly with each other**. DesignLynk is **not** a party to that contract, is **not** the employer, agent, or representative of either party, and does **not** guarantee the quality, legality, safety, timeliness, or outcome of any work, project, or payment arranged through the Service.

3. Accounts and security

You are responsible for your account and for keeping your password secure. You may not share your account, create accounts using false information, or use another person's account. Notify us promptly of any unauthorised use.

4. Your responsibilities

All users agree to:

- provide accurate profile and listing information;
- communicate honestly and professionally;
- comply with all applicable laws; and
- honour the commitments you make to other users.

Designers are responsible for the work they deliver, for holding any qualifications they advertise, and for their own tax and legal obligations as independent professionals.

Clients are responsible for describing their needs accurately and for paying designers as agreed between them.

5. Your content and intellectual property

You keep ownership of the content you submit (profile details, images, portfolios, proposals, project files). You grant DesignLynk a non-exclusive, worldwide, royalty-free licence to host, store, and display that content **only as needed to operate and promote the Service**.

Work product: ownership of deliverables created by a designer for a client is a matter **between the client and the designer**. As a general expectation on this platform, on full completion and (where applicable) payment for a project, intellectual property in the agreed deliverables passes to the client — but the specific terms are set by the client and designer in their own arrangement, and DesignLynk is not responsible for enforcing them.

You must not upload content you do not have the rights to, or that is unlawful, infringing, or harmful.

6. Fees and payments

The Service is currently free to use. Paid subscription plans and secured ("escrow") payments are shown in the app as **planned features and are not yet active** — no fees are charged and no funds are held or processed by DesignLynk at this time.

Before we enable any paid plans or payment/escrow functionality, we will update these Terms to set out the applicable billing, escrow, refund, and cancellation terms, and where required we will ask for your agreement.

Until then, any payment arranged between a client and a designer is made **directly between them, outside the Service, at their own risk**.

7. Acceptable use

You agree not to:

- use the Service for any unlawful, fraudulent, or misleading purpose;
- post false, infringing, discriminatory, or abusive content;
- circumvent, spam, scrape, or attempt to disrupt or gain unauthorised access to the Service;
- misrepresent your identity, qualifications, or affiliation; or
- use the Service to solicit users for purposes unrelated to CAD/design work.

We may remove content and suspend or terminate accounts that breach these Terms.

8. Disclaimers

The Service is provided **"as is" and "as available"**, without warranties of any kind, whether express or implied, to the maximum extent permitted by law. We do not warrant that the Service will be uninterrupted, error-free, or secure, or that any user, listing, proposal, or deliverable is accurate, qualified, or suitable for your needs. You deal with other users at your own risk.

9. Limitation of liability

To the maximum extent permitted by law, DesignLynk and its directors, employees, and operators will not be liable for any indirect, incidental, special, or consequential loss, or for any loss of profit, data, goodwill, or opportunity, arising from your use of the Service or from any dealings between users. Nothing in these Terms excludes liability that cannot lawfully be excluded.

10. Indemnity

You agree to indemnify and hold DesignLynk harmless from any claims, damages, or costs arising out of your use of the Service, your content, or your dealings with other users, to the extent permitted by law.

11. Suspension and termination

You may stop using the Service and delete your account at any time. We may suspend or terminate your access if you breach these Terms or use the Service in a way that harms other users or DesignLynk.

12. Changes to the Service and these Terms

We are actively developing the Service and may add, change, or remove features. We may update these Terms from time to time; if we make material changes we will update the "Last updated" date and, where appropriate, notify you in the app. Continued use after changes means you accept them.

13. Governing law and disputes

These Terms are governed by the laws of the **Republic of South Africa**. You agree to the jurisdiction of the South African courts. We encourage you to contact us first so we can try to resolve any dispute informally.

14. Contact

Questions about these Terms: **support@designlynk.co.za**.

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